

25STCP03226 25STCP03226

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-12

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Case Number: 25STCP03226 Hearing Date: August 12, 2026 Dept: 26

TENTATIVE RULING:

Petitioner University of Southern

California's Petition to Confirm

Arbitration Award is granted in the amount of \$20,906.09. The proposed judgment filed on 09/19/2025 is signed and entered this date.

Analysis:

On August 19, 2025, Petitioner University of Southern California ("Petitioner") filed the instant Petition to Confirm Arbitration Award ("the Petition") against Respondent Gabriela Moreno ("Respondent"). The Petition is supported by a memorandum of points and authorities and declaration, filed on the same day. Petitioner sought multiple continuances of the time to serve Respondent and to allow for the hearing on its Motion for Approval to Electronically Serve the Petition. At the initial hearing on March 24, 2026, the Court continued the matter to August 12, 2026. (Minute Order, 03/24/26.) On June 10, 2026, the Court denied Petitioner's Motion for Approval to Electronically Serve the Petition. (Minute Order, 06/10/26.)

On July 15, 2026, Petitioner filed Proof of Service by Mail.

To date, no response to the Petition has been filed.

Legal Standard

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound

by the arbitration award.” (Code Civ. Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

A response to a
Petition to Confirm Arbitration Award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent. (Code Civ. Proc., § 1288.2.)

Discussion

Service of the Petition and Notice of Hearing

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).)

Petitioner does not attach a copy of the arbitration agreement. Instead, it includes a copy of the demand for arbitration of an employment dispute submitted by Respondent to the American Arbitration Association. (Pet., Attachment 4(b); Aguado Decl., ¶3 and Exh. A.) Therefore, the Court finds the Petition to Confirm and Notice of Hearing must be served upon Respondent in the manner of service for a summons. On July 15, 2026, Petitioner filed Proof of Service by Mail, demonstrating service of the Petition and Notice of Hearing upon Respondent in compliance with Code of Civil Procedure section 415.30, and Respondent's Acknowledgment of Receipt of the papers. The Notice of Ruling with the continued hearing date was then served upon Respondent by electronic and first-class mail on July 15, 2026. Accordingly, the Court finds that the requirements of Code of Civil Procedure section 1290.4 are satisfied.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that “[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” (Code Civ. Proc., § 1283.6.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) Petitioner moves to confirm the costs award issued by the arbitrator in connection with the parties’ arbitration proceeding. A copy of the costs award was served on the parties on June 23, 2025. (Pet., Aguado Decl., ¶14 and Exh. C.) It was also served on Respondent as a part of the instant Petition. (Ibid.) Petitioner, therefore, has satisfied the requirements of Code of Civil Procedure section 1283.6.

Confirmation of the Arbitration Award

An arbitration award

is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones v. Kvistad* (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the name of the arbitrator, and attaches a copy of the award of costs. (Pet., Aguado

Decl., ¶¶3-4, 14 and Exhs. A-C.) The arbitrator awarded Petitioner \$20,906.09 in costs. (Id. at Exh. C.) Therefore, the award of arbitration costs is confirmed in favor of Petitioner in that amount.

Conclusion

Petitioner University of Southern

California's Petition to Confirm

Arbitration Award is granted in the amount of \$20,906.09. The proposed judgment filed on 09/19/2025 is signed and entered this date.

Moving party to give notice.